

Court No. - 35

Case :- WRIT - C No. - 8130 of 2003

Petitioner :- Mohan Dairy & Cold Storage Bulandshahar

Respondent :- U.P. Power Corporation Ltd. & Others

Petitioner Counsel :- Vikas Budhwar,B.Bahadur,Manyank Agarwal,S.C.
Budhwar,Seema Agarwal

Respondent Counsel :- Vinod Mishra,S.C.,U.N. Sharma,V.S.Mishra,Vijay
Shankar

Hon'ble Bala Krishna Narayana,J.

List in the next cause list showing the name of Sri H.P. Dubey also as counsel for the respondent.

Order Date :- 29.7.2011

Bhaskar

Court No. - 35

Case :- WRIT - C No. - 8130 of 2003

Petitioner :- Mohan Dairy & Cold Storage Bulandshahar

Respondent :- U.P. Power Corporation Ltd. & Others

Petitioner Counsel :- Vikas Budhwar,B.Bahadur,Manyank Agarwal,S.C.
Budhwar,Seema Agarwal

Respondent Counsel :- Vinod Mishra,S.C.,U.N. Sharma,V.S.Mishra,Vijay
Shankar

Hon'ble Bala Krishna Narayana,J.

List in the next cause list showing the name of Sri Pankaj Shukla also as
counsel for the respondent.

Order Date :- 5.8.2011

Bhaskar

Court No. - 35

Case :- WRIT - C No. - 8130 of 2003

Petitioner :- Mohan Dairy & Cold Storage Bulandshahar

Respondent :- U.P. Power Corporation Ltd. & Others

Petitioner Counsel :- Vikas Budhwar, B. Bahadur, Manyank Agarwal, S.C. Budhwar, Seema Agarwal

Respondent Counsel :- Vinod Mishra, S.C., U.N. Sharma, V.S. Mishra, Vijay Shankar

Hon'ble Bala Krishna Narayana, J.

List has been revised. Learned counsel for the petitioner is present.

No one is present from the side of respondent.

This writ petition has been filed by the petitioner before this Court with a prayer for issuing a writ order or direction in the nature of certiorari quashing the order dated 18.1.2003 as communicated along with covering letter dated 6.2.2003 of respondent No.3, Annexure-12 to the writ petition as well as the order dated 27.9.2002, Annexure-9 to the writ petition, and the final assessment bill dated 7th October, 2002, Annexure- 9-A to the writ petition, issued by respondent No.2. The petitioner has also made a prayer for issuing a writ in the nature of mandamus directing the respondents to refund the amount already paid by the petitioner in pursuance of the impugned assessment.

Sri M.K. Gupta, learned counsel for the petitioner stated that the petitioner does not want to press third prayer made by him in the writ petition. Sri Gupta, contended that in the present case no irregularity was found in the checking made and that the inspection report dated 8.7.2002, copy whereof has been filed as Annexure-1 to the writ petition, neither shows any tampering with the meter or any other equipment or that the petitioner was abstracting excess load. He further contended that the petitioner was wrongly assessed under Clause 6.17 of the U.P. Electricity Supply Code, 2002 treating the case to be of theft of electricity.

According to the petitioner, the Appellate Committee while deciding the appeal under para 7.20 of the Code, has also not found that the petitioner was actually abstracting energy of a higher load.

Learned counsel for the petitioner further submitted that " theft" has been defined under para 2.2(av) of the Code to mean abstraction of electricity either through passing the meter by some arrangement or tampering with the meter to cause it to record less energy than actually passing through it or through illegal tapping of the supply from the licensee's network. Sri Gupta, further submitted that the corporation inferred that the petitioner had committed theft from the fact that transformer and a cable of higher capacity was installed at his premises. The Maximum Demand Indicator was installed in the petitioner's premises which was found to be in order and that the finding of the Appellate Committee has been arrived at only by drawing inference which is not warranted by any material on record. The learned counsel for the petitioner also submitted that the assessment, if any, should have been made under para 6.18 and not under para 6.17 of the Code.

After having examined the submissions made by the learned counsel for the petitioner and perused the impugned order as well as the other materials brought on record, I find that there is force in the submissions made by the petitioner's counsel and the same are liable to be accepted. After going through the material which has been brought on record, I find it is difficult to accept the case set up by the corporation that the petitioner had committed theft of electricity. There is no evidence on record indicating that there was any tampering with the meter or any other equipment or that the petitioner was abstracting excess load through illegal tapping of

the supply and from the totality of the circumstances, the only interference that can be drawn is that in the instant case the petitioner was found consuming load in excess of the sanctioned limit and hence the petitioner is liable to be assessed in accordance with para 6.18 of the Code. The finding recorded by the appellate committee that the petitioner had committed theft of electricity is based on surmises and conjunctures rather than on any tangible evidence and the same cannot be sustained.

Learned counsel for the petitioner informed the Court that in compliance of the interim order passed on 19.2.2003 by this Court in his favour, the Corporation has raised demand under para 6.18 of the Code and the petitioner has paid all his bills and the amount already paid by the petitioner in pursuance of the impugned assessment to the Corporation has already been adjusted.

In this view of the matter, the impugned order dated 18.1.2003 (Annexure No.12 to the writ petition) and order dated 8th of July, 2002 (Annexure No.1 to the writ petition) and the Assessment made under para 6.17 of the Code can not be sustained and are liable to be quashed.

For the aforesaid reasons, the writ petition succeeds and is allowed. The impugned order dated 18.1.2003 (Annexure No.12 to the writ petition) passed by respondent No.3 and order dated 8th of July, 2002 (Annexure No.1 to the writ petition) passed by respondent No. 2 and final assessment bill dated 7.10.2002 (Annexure-9 to the writ petition) are hereby quashed.

Order Date :- 12.8.2011
G.S